

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

SUMMONS

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JAMEL ZELLNER,

Index No.: 22722-2013 E

-against-

Plaintiffs,

The basis of venue is:
Plaintiff's residence

THE CITY OF NEW YORK, POLICE OFFICER
JONATHAN ACQUAVIVA, Shield # 3348, POLICE
OFFICER JOHN DOE #1, (name and number of who is
unknown at present), and POLICE OFFICERS JOHN
DOES #2-9 (names and number of who is unknown at
present), and other unidentified members of the New York
City Police Department,

Plaintiff designates Bronx
County as the place of trial.

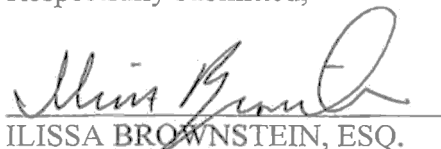
Defendants.
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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
July 29, 2013

Respectfully submitted,



ILISSA BROWNSTEIN, ESQ.
Attorney for Plaintiff
22 Cortlandt Street, 16th Floor
New York, New York 10007
(212) 691-3333

CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY-----X
JAMEL ZELLNER,

Plaintiffs,

-against-

Index No.: 22722-2013

THE CITY OF NEW YORK, POLICE OFFICER
JONATHAN ACQUAVIVA, Shield # 3348 POLICE
OFFICER JOHN DOE #1, (name and number of who is
unknown at present), and POLICE OFFICERS JOHN
DOES #2-9 (names and number of who is unknown at
present), and other unidentified members of the New
York City Police Department,Defendants.
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Plaintiff **Jamel Zellner**, by his attorney, ILISSA BROWNSTEIN, ESQ., as and for the Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiffs' rights as secured by the laws of the State of New York. Plaintiff was unlawfully arrested by the defendants. Plaintiff was deprived of his state constitutional and common law rights when the individually named police officer defendants unlawfully confined plaintiff, caused the unjustifiable arrest of plaintiff and malicious prosecution of plaintiff.

PARTIES

2. Plaintiff Jamel Zellner is a citizen of the United States and a resident of Bronx County in the State of New York.
3. POLICE OFFICER JONATHAN ACQUAVIVA, Shield # 3348 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
4. POLICE OFFICER JONATHAN ACQUAVIVA, Shield # 3348 is being sued in his individual capacity and official capacity.
5. Police Officer John Doe #1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
6. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.

7. New York City Police Officers John Does #2-9 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
8. Police Officers John and Jane Does #2-9 are being sued in their individual capacity and official capacity.
9. At all times relevant herein, defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
10. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department (NYPD) as part of and in conjunction with its municipal function.
11. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.
12. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.
13. THE CITY OF NEW YORK held a 50(H) hearing examination of the Plaintiff.

STATEMENT OF FACTS

14. Jamel Zellner is 31 years old. He has two sons that he takes care of. Josiah is 6 months old and Jamel is 7 years old.
15. Mr. Zellner is an electrician. He works for Verified Electrical and Technical Services, Inc. (VETS) as an electrical engineer/electrician.
16. When he hit 30 years old, Mr. Zellner decided to pursue his dream, which was to make music. He quit his two-year long job as an electrician at June Electric and put all of his time and savings into his music career. He started his own music label and has been selling CD's as a vendor.
17. On December 9, 2012 at 4pm in front of 1585 Broadway, New York, N.Y. Mr. Zellner was arrested for aggressive begging and disorderly conduct. Officers in plain clothes approached him, grabbed his right arm, twisted it and said, "Don't Move." He was immediately handcuffed.

18. However, Mr. Zellner was merely was selling his music from behind a table out of the way of civilian traffic when police officers arrested him for aggressive panhandling. What more, there were not any customers or pedestrians at that time.
19. Mr. Zellner was incarcerated for approximately 24 hours before being ROR'ed. He made one post-arraignment court appearance.
20. Mr. Zellner sustained bruises to the wrist for three days on account of the tightly placed handcuffs. He never received his \$100 CD's, which cost him \$1000 to reproduce.
21. On January 7, 2013 Claimant accepted a straight ACD.
22. Mr. Zellner filed a notice of claim on January 29, 2013.

**FIRST CAUSE OF ACTION:
FALSE ARREST/FALSE IMPRISONMENT**

23. Plaintiffs repeat and reallege paragraphs 1 through 22 as if fully set forth herein.
24. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiffs and, in fact, confined plaintiffs, and plaintiffs were conscious of the confinement. In addition, plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.
25. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
26. The City, as the employer of the officer defendants, is responsible for their wrong doing under the doctrine of respondeat superior.

**SECOND CAUSE OF ACTION:
ASSAULT**

27. Plaintiff repeats and realleges paragraphs 1 through 26 as if fully set forth herein.
28. Defendants, their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff.

29. Defendants were at all times an agent, servant, and employee acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
30. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

**THIRD CAUSE OF ACTION:
BATTERY**

31. Plaintiff repeats and realleges paragraphs 1 through 30 as if fully set forth herein.
32. Defendants, their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner struck plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.
33. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.
34. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

**FOURTH CAUSE OF ACTION:
NEGLIGENT HIRING, RETENTION, TRAINING, AND SUPERVISION**

35. Plaintiff repeats and realleges paragraphs 1 through 34 as if fully set forth herein.
36. At all relevant times hereto, defendants The City of New York had the duty to competently and sufficiently hire, train and retain within the Police Academy and at the Command, precinct and Patrol levels, the defendant Officers in the protection of the rights of the plaintiff under the laws of the State of New York.
37. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants individually named defendants, individuals who were unfit for the performance of police duties on July 21, 2011, at the aforementioned location.

**FIFTH CAUSE OF ACTION:
COMMON LAW NEGLIGENCE**

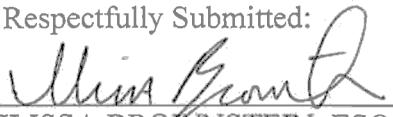
- 38. Plaintiff repeats and realleges paragraphs 1 through 37 as if fully set forth herein.
- 39. Defendants owed a duty of care to plaintiff.
- 40. Defendants breached that duty of care by falsely arresting plaintiff.
- 41. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.
- 42. All of the foregoing occurred without any fault or provocation by plaintiffs.
- 43. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

**SIXTH CAUSE OF ACTION:
NEGLIGENCE INFLICTION OF EMOTIONAL DISTRESS**

- 44. Plaintiffs repeat and reallege paragraphs 1 through 43 as if fully set forth herein.
- 45. By the actions described herein, the individually named defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiffs and violated plaintiffs' statutory and common law rights as guaranteed plaintiffs by the laws and Constitution of the State of New York.
- 46. As a result of the foregoing, plaintiffs were deprived of liberty, and sustained great emotional injuries.
- 47. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

WHEREFORE, JAMEL ZELLNER, plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law.

Dated: New York, New York
July 29, 2013

Respectfully Submitted:
By: 
ILISSA BROWNSTEIN, ESQ.
Attorney for Plaintiff
22 Cortlandt Street (16th Floor)
New York, New York 10007
(212) 691-3333

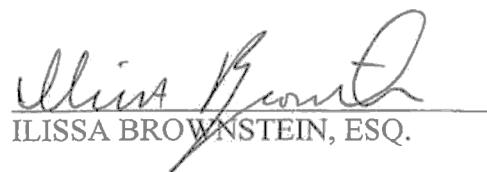
TO: CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
New York, NY 10007

ATTORNEY'S VERIFICATION

ILISSA BROWNSTEIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at the law firm of **ILISSA BROWNSTEIN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
July 29, 2013


ILISSA BROWNSTEIN, ESQ.